



Homeless and Domestic Violence Shelters: Approval and Closure Process

Policy: The State or local agency shall attempt to establish to the extent practicable, that the homeless facility meets the following conditions with respect to resident WIC participants:

- The homeless facility does not accrue financial or in-kind benefit from a person's participation in the Program, e.g., by reducing its expenditures for food service because its residents are receiving WIC foods;
- Foods provided by the WIC Program are not included into a communal food service, but are available exclusively to the WIC participant for whom they were issued;
- The homeless facility places no constraints on the ability of the participant to partake of the supplemental foods, nutrition education and breastfeeding support available under the Program.

The local agency staff shall:

- Contact the homeless facility periodically to ensure continued compliance with these conditions; and
- Request the homeless facility to notify the State or local agency if it ceases to meet any of these conditions.

Regulation: 7 CFR 246.4, 7 CFR 246.7

Procedure/Additional Guidance:

Homeless Facility: Any of the following facilities which provide meal service: a publicly supervised or privately operated shelter, including a welfare hotel or congregate shelter, designed to provide temporary living accommodations; a facility that provides a temporary residence for individuals intended to be institutionalized; and a public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for human beings.

Homeless Individuals: A woman, infant or child who lacks a fixed and regular nighttime residence; or whose primary nighttime residence is a supervised publicly or privately operated shelter (including a welfare hotel, a congregate shelter, or a shelter for victims of domestic violence) designated to provide temporary living accommodation; an institution that provides a temporary residence for individuals intended to be institutionalized; a temporary accommodation of not more than 365 days in the residence of another individual; or a public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for human beings.

Steps for Approving A Shelter

The steps for approving a shelter are as follows:

1. Local agency forwards name and address of facility wishing to become a WIC-eligible homeless shelter to the State WIC Office.
2. State Office sends information and an Application for Approval of a Homeless Shelter (WIC #90) to the shelter.
3. Shelter returns the completed form to the State Office.
4. State Office reviews the form for ability and willingness to comply with required eligibility conditions. If the shelter meets criteria, they become provisionally authorized.
5. State Office sends *Letter of Agreement* signed by State staff with provisional authorization to the shelter. A copy is sent to the local WIC agency to inform staff of the need to visit the shelter.
6. A representative of the local WIC Program visits the shelter within 60 days to conduct an initial orientation visit. This visit will serve as an opportunity for the local WIC Program to become more familiar with the facility, review compliance with the *Letter of Agreement*, and provide information regarding WIC to the shelter. WIC outreach pamphlets and posters should be distributed and displayed in the shelter. The representative completes the Initial Evaluation of a WIC-Eligible Homeless Facility form (WIC #91).
7. After the orientation visit, the local WIC Program representative returns the completed Initial Evaluation of a WIC Eligible Facility form to the State Office. If the shelter is found to be able to comply, a letter will be sent from the Colorado Department of Public Health & Environment/WIC Program to the shelter and local agency, stating that the shelter is a fully-authorized WIC shelter.
8. A biennial (one time every two years) evaluation by a local WIC representative is required to ensure continued compliance with the *Letter of Agreement* and to allow an opportunity for further community outreach with the shelter. Shelters may receive an on-site visit or telephone contact at the discretion of the local agency. The



Biennial Evaluation of WIC-Eligible Homeless Facility form (WIC #94) is to be completed every two years and a copy should be sent to the State Office within thirty (30) days of the evaluation.

Steps for Closing A Shelter

The steps for closing a shelter are as follows:

1. Closure: Local agency forwards name and closure information for the facility to the State WIC Office for a facility that has notified them they are closed or plan on closing.
2. Termination: If the local agency has determined the facility is out of compliance based on a biennial evaluation or otherwise, the local agency will notify their assigned Nutrition Consultant. The State WIC Office will then work with the Local agency to make the final determination.
3. A *Closure Letter* will be sent from the Colorado Department of Public Health & Environment/WIC Program to the shelter and local agency, stating that the shelter is closed or terminated and shall refer all participants using such accommodation to any other accommodations in the area which meet these conditions.